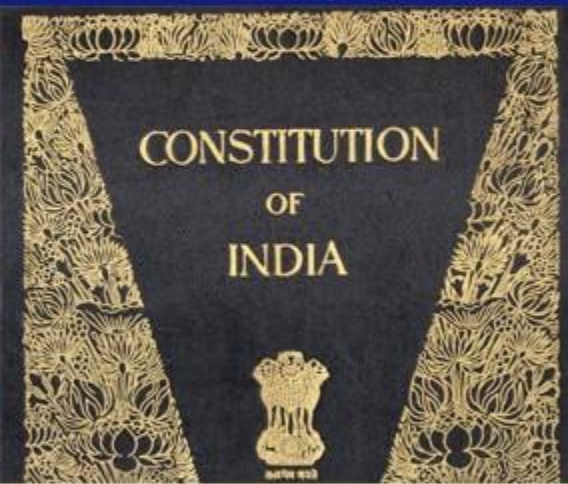
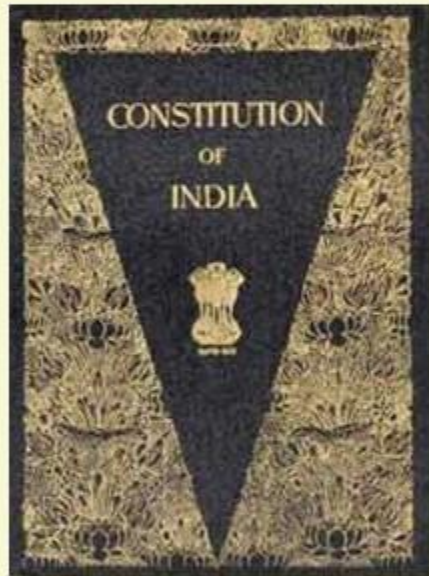


INDIAN POLITY



MODULE - 11

PHILOSOPHY OF THE CONSTITUTION



**SALIENT
FEATURES OF THE
CONSTITUTION**

THE PHILOSOPHY OF THE CONSTITUTION

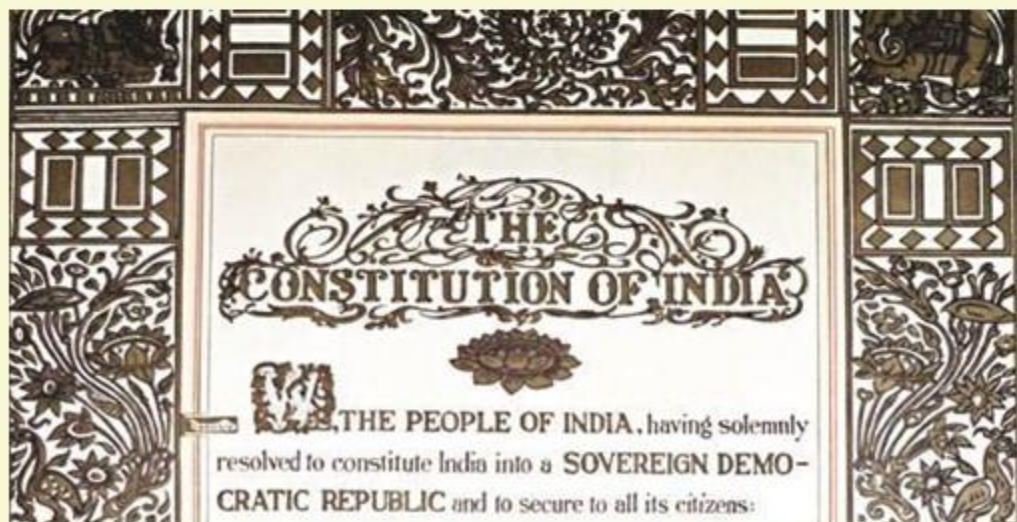


- 1 Every Constitution has philosophy of its own. For the philosophy underlying our constitution we must look back into historic “**Objectives Resolution**” of **Pandit Nehru** which was adopted by Constituent Assembly on January 22, 1947.
- 2 The ideals embodied in the above resolution is **faithfully reflected in the Preamble** of the Constitution, which summarizes the aims and objectives of our Constitution.

THE PHILOSOPHY OF THE CONSTITUTION

WHAT IS THE PURPOSE OF OUR PREAMBLE

- 1 The Preamble to our Constitution serves two purposes:
 - a) It indicates the source from which the Constitution derives its authority.
 - b) It also states the objects which the Constitution seeks to establish.



- 2 The importance and utility of the Preamble has been pointed out in several decisions of our Supreme Court.
- 3 Though, by itself, it is not enforceable in the court of law, the Preamble seeks to establish and promote the objective which the Constitution seeks and also aids legal interpretation of the Constitution, where the language is found to be ambiguous.

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

1

INDEPENDENT AND SOVEREIGN

- The Constitution of India, unlike the preceding Government of India Acts, **is not a gift of the British Parliament.**
- It is ordained by the people of India through their own representatives assembled in a sovereign Constituent Assembly.
- The words- “We the people of India adopt, enact and give to ourselves this Constitution” declares that the **ultimate sovereignty lies with the people of India.**
- Sovereignty means the Independent Authority of a State. It means that the State has power to legislate on any subject.

2

REPUBLIC

- The Preamble declares in unequivocal terms that the source of the authority under the Constitution is the people of India.
- While the **Pakistan remained a British Dominion until 1956, India ceased to be a dominion and declares herself a Republic since the making of Constitution in 1949. It means a Government by the people and for the people.**
- We have an elected President as the Head of our State and all office including that of the President will be open to all citizens.

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

3

SOVEREIGNTY NOT INCONSISTENT WITH MEMBERSHIP OF THE COMMON WEALTH

- The Crown of England ceased to have any authority over India as soon as we got Independence.
- But India decided to retain the membership of the British Commonwealth of nations without acknowledging allegiance to the crown.
- This independent action of India converted the image of Commonwealth from being a relic of imperialism into a free association of independent nations.

4

PROMOTION OF INTERNATIONAL PEACE

- India, in spite of being under the oppressive foreign imperialistic rule, it upheld the idea of Universal Brotherhood and Fraternity and stood strongly for the promotion of world peace.
- This idea of our leaders was enshrined in Article 51 of the Constitution.
- Thus India declared her sovereignty to manage her own affairs without holding the stand of isolationism.
- Indian Sovereignty is thus consistent with the concept of one world, international peace and universal brotherhood.

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?



5

DEMOCRACY

- Also known as **Parliamentary Democracy**, it envisages
 - a) Representation of the People
 - b) Responsible Government
 - c) Accountability of the Council of Minister to the Legislature
- The **essence of this is to draw a direct line of authority from the people through the legislatures.**

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

6

SOCIAL JUSTICE

- It is the comprehensive form to remove the social imbalances present in the society.
- It aims to establish a Welfare State by harmonizing the interest of different groups in the society.
- This concept of welfare State gets implemented through the Directive Principles of State Policy (DPSP).

7

ECONOMIC JUSTICE

- Economic Justice refers to banishment of poverty from the Indian Society.
- This is to be achieved not by expropriation of those who have, but by multiplication of national wealth and resources and through and equitable distribution among all who contributed to its production.
- The idea of economic justice is to make equality of status meaningful by removing inequality of opportunity.

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

8

POLITICAL JUSTICE



- Political justice means the **absence of any arbitrary distinction between a man and man in the political sphere.**
- To ensure political justice, irrespective of qualifications, every citizen of India is allowed to participate in the political system through the **principles of Universal Adult Suffrage / "One Man One Vote".**
- The Government also through autonomous bodies like **Election commission** have further strengthened the electoral suffrage in India.

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

8

POLITICAL JUSTICE



- Various reformative steps have taken by the Election Commission on the direction of the Supreme Court like the voters having the fundamental right to know about their candidates, the right to negative voting- NOTA button in the electoral voting machine etc.
- Political Justice is also ensured through offering equal opportunity to men and women irrespective of their caste and creed in the functioning of the administration/ Government.

Thus, it can be said that Social and Economic Democracy is the foundation on which Political Democracy is a way of life in the Indian Polity.

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

9

LIBERTY



- Liberty should be coupled with social restraint and subordinated to the liberty of the greatest number for common happiness.
- Democracy cannot be established unless certain minimum rights are assured to every member of the community.
- The Preamble mentions these individual rights as freedom of thought, expression, belief, faith and worship and these are guaranteed in the Part III of the Constitution.



10

EQUALITY

- Guaranteeing of minimum rights to each individual would be meaningless **unless all inequality is banished from the social structure and each individual is assured of equality of status and opportunity.**
- This status of equality in our Constitution is achieved through Article 14, 15, 16 and so on.
- The Constitution provides for both civic equality and political equality.
- **Civic Equality** like abolition of untouchability, equality before law, equality of opportunity and abolishing discrimination based on religion, caste, race, sex and place of birth.
- **Political equality** is given by providing political rights like Universal Adult Franchise (Article 326).



WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

11

FRATERNITY

- Fraternity as enshrined in the Constitution refers to **universal brotherhood**.
- This will be achieved not only by abolishing untouchability among different sects of the community but **by abolishing all communal, sectional or provincial anti-social feelings** which stand in the way of unity of India.

12

UNITY AND INTEGRITY OF THE NATION

- The ideal of unity has been introduced by adding the word **“integrity”** in the **Preamble through the 42nd Constitutional Amendment Act**.
- Despite having a diversity amongst the people owing to differences of religion, races, and culture, **the heterogeneous population coexist as one nation infusing a spirit of brotherhood**. This **Unity in Diversity** is what made the experiment of Indian democracy successful.

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

13

DIGNITY OF INDIVIDUAL

- Fraternity cannot be installed unless the dignity of each member is maintained.
- The Preamble assures the dignity of individuals by guaranteeing equal fundamental rights to each individuals and this is further made justiciable in the courts.

14

FUNDAMENTAL DUTIES

- Apart from the Fundamental rights in Part III of the Constitution, certain fundamental duties have also been enshrined under Article 51 A.



WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

15

SOCIALISM

- 1 The objective of socialistic society was enshrined by the word “socialist” in the Preamble which was added through the 42nd Constitutional Amendment.
- 2 However the Socialism which was envisaged by the Indian Constitution is **not the usual scheme of the State socialism which provides for nationalization of all means of production and the abolition of private property.**
- 3 Instead of total nationalization, our Government **envisages a mixed economy** offering equal opportunity to all and the abolition of vested interests.
- 4 As per the Supreme Court the goal of Indian socialism is **a blend of Marxism and Gandhism leaning heavily towards Gandhian Socialism.**
- 5 From **Article 43(a) which has been introduced by 42nd Amendment Act**, it is clear that socialism as envisaged by the Preamble will include participation of workers in the management of an industry and also in profit sharing.
- 6 This is a definitely a step away from **capitalism to collectivism.**

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

16

SECULAR STATE

- 1 The ideal of the secular state means that the State **protects all religions equally and does not itself uphold any religion as the State religion.**
- 2 The word “secular” has been specifically added through the 42nd Amendment Act. Articles 25, 26, 27 speaks of the secularist philosophy of the constitution.
- 3 As in other countries there is no “**established church**” in the constitution. On the other hand, the **liberty of belief, faith and worship is promised to all citizens and freedom to profess, practice and propagate religion has been guaranteed.**
- 4 This **itself is one of the glowing achievements of the Indian Democracy** when her neighbors such as Pakistan, Bangladesh, Sri Lanka and Burma uphold particular religions as State religions.

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

17

GENDER JUSTICE

- 1 Article 39 (A) in Part IV of a Constitution deals with the DPSP.



- 2 The State as per the DPSP shall direct its policy towards securing right to adequate means of livelihood for both men and women equally.
- 3 There is also a clause for equal pay for equal work for both men and women alike.
- 4 Article 51 (a) Clause(e) makes it clear that all practices derogatory to the dignity of women are to be renounced.

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

17

GENDER JUSTICE



5

A female candidate is not required to furnish information about her menstrual period, pregnancy and miscarriage as calling of such information are indeed embarrassing, if not humiliating.

6

The requirement that a married women should obtain her husband's consent before applying for public employment was held invalid and unconstitutional.

WHAT ARE THE PHILOSOPHIES ENSHRINED IN CONSTITUTION?

17

GENDER JUSTICE



7

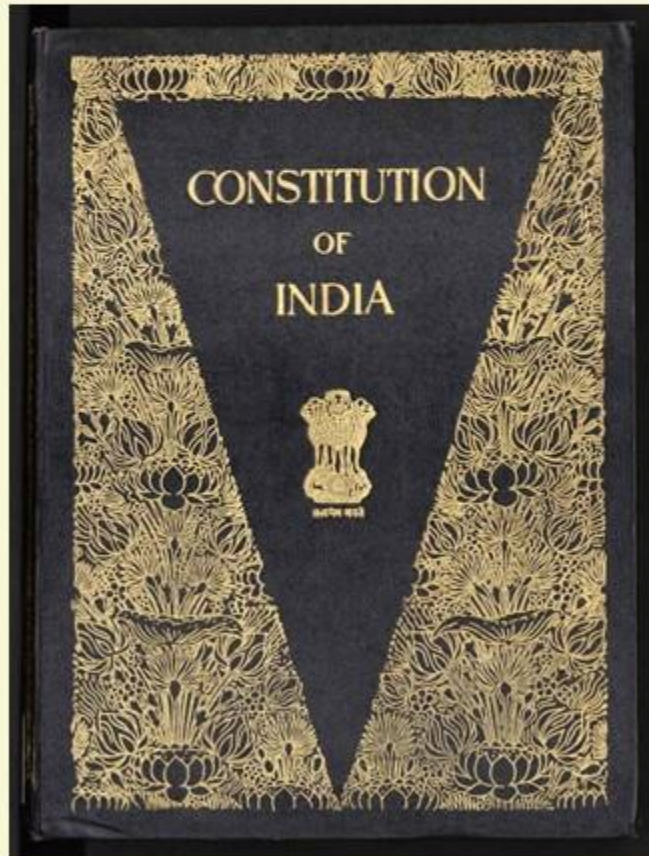
In the case of Vishakha and others versus State of Rajasthan, the Supreme court referred to the Convention on the Elimination Of All Forms Of Discrimination Against Women (CEDAW) and framed certain guidelines with regard to the sexual harassment at work places.

8

Thus the Constitution and the Supreme Court has recognised in equal measure the right of equality and the human right to live with dignity for both men and women equally.

THE PHILOSOPHY OF THE CONSTITUTION

CONCLUSION



- Combining the ideals of political, social and economic democracy with that of equality and fraternity, the Preamble seeks to establish what Mahatma Gandhi described as “the India of My Dreams”, namely— “....an India in which poorest shall feel that it is their country in whose making they have an effective voice....There can be no room in such an India for the curse of untouchability or the curse of intoxicating drinks and drugs. Women will enjoy the same rights as men”.
- Thus, it can be said that the Preamble of our Constitution forms the philosophy of the Constitution and it has withstood the test of time and has remained to be one of the successful Constitution in the world.

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